

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY OF THE CITY OF CHEYENNE

Office of City Clerk

March 20, 2019

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:02 p.m. in City Council Chambers for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS – Mr. Cook, Mr. Laybourn, Mr. Luna, Dr. Rinne, Mr. Roybal, and Mr. White. Absent: Mr. Case, Mr. Esquibel, and Mr. Shanor. Also present: Kris Jones, City Clerk; Alessandra McCoy Fakelman, Senior Assistant City Attorney; Logan Sharpe, Assistant City Attorney; Ron Downey, Human Resources Deputy Director, Robin Lockman, City Treasurer, and Chief Greg Hoggatt, Fire and Rescue Department. The pledge of allegiance was recited.

Mayor Orr advised the meeting would be audio recorded and available on Facebook live. Mayor Orr explained it is the governing body's intention to go into executive session for the purpose of evaluating proposed remaining sections.

Mayor Orr provided a review of previous meetings.

Bill Hinz, Union President, provided information and a review of the negotiation process to date and noted details relating to retirement benefits, use of sick leave, E.O.D, I.O.D, training, and overtime. Upon inquiry, Mr. Hinz advised it is the Union's belief that management is in control of overtime. Mr. Hinz advised the Union does not desire to go into arbitration and proposes the following: Section 4-agreement with a one or two year contract term, Section 15-add three members from 88 to 91 in FY 2020 and increase shift levels from 26 to 27 for FY 2020 beginning on July 1, 2019, Section 17-reoffer Kelly Day proposal reducing hours worked per week from 56-52, Section 18-accept City's language amendment and remaining Proposed Contract Language (PCL), Section 20-PCL, Section 21-reduce work hours per week from 56 to 52 and 3.0% wage increases for FY 2020 beginning July 1, 2019 and by adding that members would receive any additional bonuses in the form of money or time off offered to non-uniformed employees, Section 22-accept City offer that no member shall be granted overtime while on vacation and 480 hours of E.O.D compensatory time instead of 240 hours, Section 23-reoffer Union's last proposal including amendment to Letter F-changing the acting roster for Day Personnel positions to four years instead of three, Section 27-add "Battalion Chief of the Shift" in Section G and remaining PCL, Section 28-reoffer Union's last proposal and accept City's language in Paragraphs 1, 2, and 3 remaining PCL, and Section 43-reoffer Union's original offer.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Roybal moved to meet in executive session, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present. Mayor Orr identified, in addition to members of the governing body present, the City Clerk, Senior Assistant City Attorney, Assistant City Attorney, City Treasurer, Human Resources Deputy Director, and Chief of the Fire and Rescue Department would also be

present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive Session convened at 6:20 p.m. in the Mayor's Conference Room]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:31 p.m. Mayor Orr advised the City proposes the following: Section 4-proposes a one year contract, Section 15-accepts Union's last offer, Section 17-accepts Union's last offer, Section 18-accepts Union's last offer, Section 20-reoffer City's last offer, Section 21-city accepts Union's last offer of Kelly Day proposal with the following amendments: No hourly wage increase for line personnel as they are receiving a 7.99% hourly rate increase with the Kelly Day shift schedule reducing hours actually worked, and increasing day personnel with a 3% hourly rate increase, accepts EMT and Paramedic increase, strike the following language on the last page of section "Any time the City provides additional money or time off to City employees in the form of a bonus, members of the Union shall also be eligible to receive that additional money or time off. Said offer shall only be made to the entirety of the membership of the Union", Sections 22, 23, 27, and 28-reoffer City's last offer, and Section 43-City accepts Union's last offer.

Upon inquiry, Mayor Orr explained that due to the lack of quorums for any future meetings, the governing body is willing extend the time limit for today's negotiations.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Luna moved to meet in executive session, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body present. Mayor Orr identified, in addition to members of the governing body present, the City Clerk, Senior Assistant City Attorney, Assistant City Attorney, City Treasurer, Human Resources Deputy Director, and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive Session convened at 7:40 p.m. in the Mayor's Conference Room]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 9:36 p.m.

Mr. Hinz advised the Union proposes the following: Union accepts Sections 4, 15, 17,18, 20, 21-Kelly Day work schedule, agreement to 1.5% increase for line personnel and 3% increase for EMT's and Paramedics, noting Kelly Day work schedule shall begin on Jan. 1, 2020, and by striking inclusion of end of year bonus, #22- agrees to 240 hours instead of 480 hours beginning July 1, 2019, 23-adding the lowest or least senior person on the established acting roster would be the first to get bumped, #27-agree to 4 slots and removing the strike of 12 vacation periods, 28-reoffer last Union offer, and 43-accepts City's offer.

Mr. Hinz requested to conduct a sidebar conversation with Chief Hoggat for the purpose of clarifying intentions of the City regarding Section #27-Vacations. They vacated the Council Chambers at 10:34 p.m and returned to Council Chambers at 10:37 p.m. Both parties announced they were in agreement to the proposal for Section #17-Vacations.

Mayor Orr announced all sections with the exception of 28-Sick Leave, were mutually agreed upon and would be signed off on. She noted Section 28 would be determined through the

arbitration process as both the City and the Union are at an impasse of state law interpretation relating to retirement calculations.

Mayor Orr stated the purpose of the special meeting had been met, and there being no business previously noted for the special meeting, adjourned the meeting at 10:38 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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